



Tribunals Ontario
Landlord and Tenant Board

Instructions: Form L10

Application to Collect Money a Former Tenant Owes

(Disponible en français)

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Section A: When to use this application

You can use this application if the tenant has already moved out of the rental unit and want an order to:

- collect rent or compensation you believe the former tenant owes you
- collect an amount for charges related to NSF cheques the former tenant gave you
- collect costs you believe the former tenant owes you for unpaid utility bills (utilities mean heat, electricity and water)
- collect money you believe the former tenant owes you for damaging the rental unit
- collect costs you incurred because the former tenant or someone else visiting or living in the rental unit substantially interfered with your reasonable enjoyment or lawful right, privilege or interest

You can only file this application if the tenant moved out of the rental unit on or after September 1, 2021. You cannot file this application more than one year after the date the tenant moved out.

If the tenant is still living in the rental unit

You **cannot** file this application if the tenant is still living in the rental unit.

If the tenant is still living in the rental unit and you want an order for payment of rent arrears, you may complete an *Application to Collect Rent the Tenant Owes* (L9 Application) and file it with the Landlord and Tenant Board (LTB).

If the tenant is still living in the rental unit and you want to evict the tenant for non-payment of rent, you may complete the *Application to Evict a Tenant for Non-Payment of Rent and to Collect Rent the Tenant Owes* (L1 Application) and file it with the LTB. However, before you file the L1 application, you must give the tenant an N4

Notice to End your Tenancy for Non-Payment of Rent.

If the tenant is still living in the rental unit and you believe the tenant owes you money for a reason other than rent arrears, you may file an *Application to End a Tenancy and Evict a Tenant* (L2 Application) to request an order requiring the tenant to pay you:

- compensation for each day they remain in the rental unit after the termination date set out in *Notice to End your Tenancy*
- bank charges and related administration charges for NSF cheques the tenant gave you
- utility costs (heat, electricity and water) that the tenants failed to pay
- compensation for damage the tenant, their guest, or another occupant of the rental unit caused to the rental unit or to the residential complex
- expenses you have incurred because the tenant, their guest, or another occupant of the rental unit substantially interfered with your reasonable enjoyment or lawful right, privilege or interest; and/or
- the additional amount the tenant would have been required to pay had the tenant not misrepresented their income or that of their family in a Rent-Geared-to-Income rental unit.

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Section B: How to complete this application

Read these instructions before completing the application form. You are responsible for ensuring that your application is correct and complete. Follow the instructions carefully when you complete the application form.

The information you fill in on the form will be read electronically; therefore, it is important to follow the instructions below:

- Print clearly or type and do not touch the edges of the boxes.
- If there are more boxes in a line than you need, start from the left and leave the extra boxes blank.
- Do not fill in boxes that do not apply to you (for example, if you do not have a fax number, do not fill in boxes in the space marked "Fax Number").
- If the instructions tell you to shade a box or a circle (for example, circles marked "Yes" or "No"), shade the box or circle completely.

Language Preference

The LTB offers services in both English and French. If you, your representative, or one of your witnesses would like to receive French Language Services, please select French.

Request for Accommodation

The LTB committed to treating all persons with dignity and respect and in a manner that promotes independence. The LTB is committed to providing an inclusive and accessible environment in which all persons have equitable access to our services.

Accommodations are arrangements to allow everyone, regardless of their abilities, to participate fully in the LTB's process.

Complete the Accommodation Request form if you require accommodation under the *Ontario Human Rights Code* or for a procedural fairness need. Provide as much detail as you can about your request for accommodation for your upcoming hearing. Email or mail your completed form to the LTB office that is handling

The LTB will not include a copy of this form when we give the other parties a copy of the application form. However, the information will be included in your application file. The file may be viewed by other parties to the application.

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In the *Former Tenant Name and Current Address* section, fill in the former tenant's name. If there were two tenants living in the rental unit, fill in both their names. If more than two tenants lived in the rental unit, fill in information about two tenants in this section of Part 1. Provide the names, addresses and telephone numbers of any additional tenants on the [Schedule of Parties Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/ltb.

Provide the former tenant's current address in this section if known. Do not provide the rental unit address. At the hearing you may be asked to explain how you determined the former tenant's current address.

You can leave this blank if you do not know the former tenant's current address. Do not provide the rental unit address. At the hearing you may be asked to explain how you determined the former tenant's current address. Also provide the former tenant's e-mail address if you know it.

Related Applications

If you or your tenant have filed other applications that relate to this rental unit, and those applications **have not** been resolved, fill in the file numbers in the space provided.

Part 4: Applying to collect money the former tenant owes you

You can apply to collect money the (former) tenant owes you for the following reason(s):

- Collect rent arrears or compensation that you believe the former tenant owes you
- Collect an amount for charges related to NSF cheques the former tenant gave you, if you are also applying for rent arrears or compensation
- Collect costs you believe the former tenant owes you for unpaid utility bills (utilities mean heat, electricity and water)
- Collect money you believe the former tenant owes you for damaging the rental unit
- Collect costs that you incurred because the former tenant or someone else visiting or living in the rental unit substantially interfered with your reasonable enjoyment or lawful right, privilege or interest

Note: The most the [LTB](#) can order based on your claim is \$50,000. If you believe the tenant owes you more than \$50,000, and you want to collect the full amount, you should apply to court and not to the [LTB](#). Once the [LTB](#) issues an order based on your application, you no longer have any claim to amounts greater than \$50,000 from your tenant.

Shade the appropriate box or boxes to indicate the reason(s) for which you believe the tenant owes you money.

Rent and Compensation

Shade this box if you believe the former tenant owes rent that was not paid during the tenancy or owes compensation for each day they lived in the rental unit after the tenancy was terminated by a notice of termination or an agreement to terminate the tenancy.

Complete the "Rent and Compensation Owing" table to show how you calculated the amount of rent you believe the former tenant owes you.

If the former tenant owes you rent for more than three rental periods, you can combine two or more rental periods in the first or second row of the table. However, in the last row of the table that you complete, you must show the rent charged, rent paid and rent owing for the last rent period for which the former tenant owes rent.

Rent includes the basic rent for the rental unit, plus any amount the tenant pays you separately for services such

as parking.

If the tenant is responsible for paying all or a portion of a utility bill (such as hydro) directly to the utility company or indirectly through the landlord, this is not considered rent. If the former tenant was required to pay the landlord a fluctuating amount for utilities (for example, 50% of the hydro bill), this is not considered rent but can be claimed as an unpaid utility in Part 3 of this application. However, If the former tenant was required to pay a flat rate to the landlord each month for a utility, this would meet the definition of rent and should be included in this section.

Example: The tenancy agreement between Bruce Campanolo, the landlord, and Sophia Maxwell, the tenant, required Sophia to pay \$1000 on the first of each month.

On November 1, 2021, Sophia paid only \$900 and on December 1, she only paid \$700. On January 1, 2022 Sophia gave Bruce a cheque for \$1000 which was returned NSF. The parties agreed to end the tenancy on January 31, 2022, and Sophia moved out.

On February 28, 2022, Bruce filed this application with the LTB. This is how he filled out the rent owing table:

Section 1. Rent Owning

I have calculated the amount of rent the tenant owes me as follows:

Rent Period From: (dd/mm/yyyy) To: (dd/mm/yyyy)		Rent Charged \$	Rent Paid \$	Rent Owning \$
01/11/2021	30/11/2021	1,000.00	900.00	100.00
01/12/2021	31/12/2021	1,000.00	700.00	300.00
01/01/2022	31/01/2022	1,000.00	0.00	1,000.00
Total Rent Owning \$				1,400.00

NSF cheque related charges

Shade this box if the former tenant made a payment by cheque that was returned to you because of non-sufficient funds (NSF), and has not paid you back for the charges related to the NSF cheque. You must also be applying for Reason 1 to make this claim.

If the former tenant owes you for NSF charges, complete the table to show how you calculated the amount the tenant owes you. Fill in one row of the table for each NSF cheque the tenant gave you. Include the following information:

- the amount of the cheque
- the date of the cheque
- the date your financial institution charged you for the NSF cheque (under *Date NSF Charge Incurred*)
- the amount the bank charged you for the NSF cheque (under *Bank Charge for NSF Cheque*)
- the amount of your related administration charges (under *Landlord's Administration Charge*)

Note: A landlord's administration charge for NSF cheques can include your personal or corporate costs related to the handling of NSF rent cheques. For example, this charge may include the costs for additional accounting expenses or tenant notification in cases of NSF cheques. The **maximum** administration charge for an NSF cheque allowed by the *Residential Tenancies Act (RTA), 2006* is \$20 per cheque.

- Calculate the amounts for each row in the *Total Charge* column by adding the amount for *Bank Charge for NSF Cheque* and the amount for *Landlord's Administration Charge*. **Do not** include the *Cheque Amount*.

- Calculate the amount for *Total NSF Related Charges Owning* by adding the amounts you filled in the *Total Charge* column.

Example: On December 31, 2021, the tenant Jean Jasper gave Stan Petri, the landlord, a cheque for \$1000, dated January 1, 2022 for January's rent, but the cheque was returned NSF. As a result, the bank charged Stan an NSF fee of \$5; the fee appeared on his bank statement on January 14. Stan also had costs related to handling the NSF cheque. After Jean moved out of the rental unit on February 12, 2022, Stan applied filed this application with the LTB.

Stan filled out the table below to show how he calculated the amount for charges related to the NSF cheque:

Section 2. NSF Cheque Charges

Fill in the table below if you are applying to collect money from the tenant because you had bank or administration charges for NSF cheques the tenant gave you.

I have calculated the amount of NSF bank charges and my related administration charges the tenant owes me as follows:

Cheque Amount \$	Date of Cheque dd/mm/yyyy	Date NSF Charge Incurred dd/mm/yyyy	Bank Charge for NSF Cheque \$	Landlord's Administration Charge \$	Total Charge \$
1,000.00	01/01/2022	14/01/2022	5.00	20.00	25.00
Total NSF Related Charges Owning \$					25.00

Attach additional sheets if necessary.

Utilities

Shade this box if you had expenses because the former tenant did not pay heat, electricity and water costs that they were supposed to pay under the terms of the tenancy agreement. Fill in the total amount the former tenant owes you.

Complete the table to show how you calculated the amount the former tenant owes you. Fill in one row of the table for each utility bill. Include the following information:

- The name of the utility company
- The date of the utility bill
- The total amount of the utility bill
- The period covered by the utility bill
- The amount of the bill that has already been paid by the former tenant (enter \$0 if nothing has been paid)
- The amount of the utility bill still owing by the tenant

If you need to provide more information about the utility costs that you are claiming, use the space after the table.

Provide copies of the bills to the former tenant and the LTB by the deadline for disclosure in LTB Rule of Procedure 19. If the tenancy agreement that required the former tenants to pay the utility costs was in writing, you also should submit a copy to the former tenant and the LTB before the hearing.

Example: The tenancy agreement required the tenant Jean Jasper to pay the landlord Stan Petri 50% of the hydro charges for the rental unit. Jean moved out of the rental unit on August 31, 2021. On September 10, 2021, Anytown Hydro Company issued a bill for the month of August in the amount of \$300.00.

Stan filled out the table below to show how he calculated the utility charges he is claiming:

Date of Utility Bill (dd/mm/yyyy)	Period Covered by Utility Bill From (dd/mm/yyyy) To (dd/mm/yyyy)		Total Bill Amount \$	Amount Paid by Tenant \$	Amount Owning by Tenant \$
Name of Utility Provider 1: Any Town Hydro Company					
10/09/2020	01/08/2020	31/08/2020	300.00	150.00	150.00
Name of Utility Provider 2:					
Name of Utility Provider 3:					
				Total \$	150.00

Damage

Shade this box if you want the former tenant to pay you for the costs to repair or replace property that was wilfully or negligently damaged by the former tenant, their guest or another occupant.

Fill in the total amount the former tenant owes you. Explain in detail what damage occurred to the property and how you calculated the costs you are claiming to repair or replace the damaged property. Be specific; for example, include the cost for each repair, or the cost to replace each damaged item. If you have not yet done the repairs or made the replacements, you can include estimates of the repair or replacement costs.

Provide copies of your evidence about the damage and your repair and replacement costs to the tenant and the LTB by the deadline for disclosure in LTB Rule of Procedure 19.

Expenses related to substantial interference

Shade this box if you had expenses because the former tenant or someone else visiting or living in the rental unit substantially interfered with your reasonable enjoyment or lawful right, privilege or interest. Fill in the total amount the former tenant owes you.

Explain in detail how the former tenant, guest or occupant substantially interfered with your reasonable enjoyment or lawful right, privilege or interest, and how each expense is related to that conduct.

Example: The Tenant pulled the fire alarm for no reason and you must pay a charge to the fire department, or the tenant did not allow your pest control technician to enter the unit even though you provided proper notice and you had to pay the technician to return on a later date.

Do not select this reason if former tenant caused damage to the rental unit or residential complex or did not pay utility bills. There are specific reasons on this form that should be used for these issues.

Part 5: Total amount owing

Transfer the *Total and Compensation Rent Owning* amount from Part 4, Reason 1, to the *Total and Compensation Rent Owning* field in Part 5.

Transfer the *Total NSF Related Charges Owning* amount from Part 4, Reason 2, to the *Total NSF Cheque Related Charges Owning* field in Part 5.

Transfer the *Total Utility Costs Owning* amount from Part 4, Reason 3, to the *Total Utility Costs Owning* field in Part 5.

Transfer the *Total Costs for Damages Owning* amount from Part 4, Reason 4, to the *Total Costs for Damages Owning* field in Part 5.

Transfer the *Total Costs Relating to Substantial Interference Owing* amount from Part 4, Reason 5, to the *Total Costs Relating to Substantial Interference Owing* field in Part 5.

Under *Application Fee*, fill in the application fee of \$201.

Calculate the *Total Amount Owing* by adding up all of the above amounts. Then, transfer this amount to the box in Part 2.

Part 6: Signature

If you are the landlord, shade the circle marked "Landlord". Then, sign the application form and fill in the date.

If you are the landlord's representative, shade the circle marked "Representative". Then, sign the application form and fill in the date.

Payment information form

Complete this form to provide the LTB with the information required to process your application. Your application will not be accepted if you do not pay the application fee at the time you file the application. If you owe money to the LTB as a result of failing to pay a fee or any fine or costs set out in an order, your application may be refused or discontinued.

You may request a fee waiver if you meet the financial eligibility requirements set out by the LTB. You will need to complete the [Fee Waiver Form](#) which is available from the LTB website at tribunalsontario.ca/lrb. For more information about fee waivers and the eligibility criteria, go to the fee waiver rules and practice direction on the [Rules of Practice page](#) of the LTB website.

Payment method

Shade the appropriate box to show whether you are paying by money order, certified cheque, Visa or MasterCard. If you file using the [Tribunals Ontario Portal](#), you can file and pay directly on the system using a debit or credit card. Do not upload credit card information on documents if you are using the Tribunals Ontario Portal.

If you are filing by mail or courier, you can pay by credit card by completing the [Credit Card Payment Form](#) and submitting it with your application. You cannot pay by cash or debit card if you are filing your application by mail or courier.

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Section C: What to include when you file your application

To file this application, you must include the following:

- The completed L10 application form,
- The application fee. For a list of the LTB's fees visit the [Filing and Fees webpage](#).

Your application will be refused if you do not pay the application fee or make a [Fee Waiver Request](#).

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Section D: How to file your application

You can file your application in one of the following ways:

1. Tribunals Ontario Portal

Complete and pay your L10 application online using the [Tribunals Ontario Portal](#). If you use the Tribunals Ontario Portal, you must pay by credit card or debit card through the portal and don't need to complete a separate Credit Card Payment Form.

2. By Mail or courier

Mail or courier your L10 application to the nearest [LTB](#) office.

To find a list of [office locations](#) visit the [LTB](#) website at tribunalsontario.ca/l10. You can also call the [LTB](#) at 416-645-8080 or 1-888-332-3234 (toll-free).

If you mail or courier your application, you can pay the application fee by certified cheque, money order, Visa or MasterCard. Certified cheques and money orders must be made payable to the Minister of Finance. If you are filing by mail or courier and paying by Visa or Mastercard, you must complete the [Credit Card Payment Form](#) and submit it with your application.

3. By Fax

Effective December 31, 2021, the [LTB](#) has decommissioned its fax machines assigned to regional offices. This means that except for a limited number of circumstances, the [LTB](#) no longer accepts documents, including applications, by fax.

If you must use fax to file applications or submit documents urgently because you don't have access to a computer and/or internet or can't visit a local ServiceOntario office, applicants can fax applications and documents that don't have a fee associated, or where they are eligible for a fee waiver, to 1-833-610-2242 or (416) 326-6455.

Due to Payment Card Industry (PCI) security compliance requirements, the [LTB](#) can no longer accept credit card payment via fax. Applications with credit card information will be automatically deleted and not processed. Please contact the [LTB](#) at 1-888-332-3234 for information on how to submit payment information.

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Section E: How to give your application to the former tenant

You must give this application and the Notice of Hearing to each former tenant at least 30 days before the hearing. The [LTB](#) cannot do this for you.

Here are the ways you can give the Application and Notice of Hearing to each of the former tenants:

- handing them to the former tenant(s)
- handing them to an adult person at the former tenant(s) current residence
- sending them by mail to the former tenant(s) current residence
- sending them by courier to the former tenant(s) current residence,
- leaving them at the place where mail is ordinarily delivered, sliding it under the door or putting it through a mail slot in the door at the former tenant(s) current residence
- by email if:
 - a. during the tenancy the former tenant agreed in writing to receive documents by email, and
 - b. you can prove the former tenant received the document(s) by email.

At the hearing you may be asked to explain how you determined the former tenant's current address.

Because the former tenant no longer lives in the rental unit you cannot leave the tenant's copy at the rental unit.

Once you have given the former tenant the application and the Notice of Hearing, you must complete a [Certificate of Service – Serving a Former Tenant or a Tenant no Longer in Possession of the Rental Unit](#) and submit it to the [LTB](#) at least 20 days before the hearing. If you do not do this, the [LTB](#) may cancel your hearing and close your file. If this happens your filing fee will not be refunded.

If you are unable to give the former tenant the application and the Notice of Hearing using any of the methods listed above, but believe you can do so using different method, you may submit a [Request to use Alternative Service](#) method to the [LTB](#). You must submit this request at least 40 days before the scheduled hearing. An [LTB](#) Member will consider your request and if satisfied that the former tenant will receive the documents using your proposed method your request may be granted.

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Section F: What to do if you have any questions

You can visit the [LTB](#) website at: tribunalsontario.ca/ltb.

You can call the [LTB](#) at 416-645-8080 from within the Toronto calling area, or toll- free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the [LTB](#)'s processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.

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August 2023